

Court No. - 21

Case :- WRIT - C No. - 24697 of 2024

Petitioner :- Gurunam Singh

Respondent :- Up Power Corporation Limited And 3 Others

Counsel for Petitioner :- Dharendra Kumar Srivastava

Counsel for Respondent :- C.S.C., Krishna Agarawal, Udit Chandra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Manish Kumar Nigam, J.

1. The petitioner has challenged the recovery citation dated 25.04.2023 issued by respondent no.4 for recovery of electricity dues from him.
2. Shri Udit Chandra, learned counsel for the Electricity Department submits that the petitioner has remedy of filing objection under Clause 6.5 of the U.P. Electricity Supply Code, 2005 and that in case any objection is filed, it will be decided before recovering the amount under the impugned recovery citation.
3. Consequently, we **dispose of** the instant petition granting two weeks' time to the petitioner to file objection, which would be decided by respondent no.2 within next two weeks. For a period of four weeks, the impugned recovery shall remain in abeyance and will, thereafter, abide by the decision that would be taken by respondent no.2 on the objection of the petitioner.
4. In case no objection is filed within the time prescribed, the instant order will lapse automatically and it shall become open to the respondents to proceed further in the matter in accordance with law.

(Manish Kumar Nigam, J.) (Manoj Kumar Gupta, J.)

Order Date :- 31.7.2024

Ankit.